



UPSC GUIDE

BY THE ACHIEVERS FOR THE ASPIRANTS

ANSWERS & EXPLANATIONS WEEK-1 POLITY

Q1. Ans.B

Solution:

- Article 1 describes India, that is, Bharat as a 'Union of States' rather than a 'Federation of States'. This provision deals with two things: one, name of the country, and two, type of polity.
- There was no unanimity in the Constituent Assembly with regard to the name of the country. Some members suggested the traditional name (Bharat) while other advocated the modern name (India). Hence, the Constituent Assembly had to adopt a mix of both ('India, that is, Bharat'). Secondly, the country is described as 'Union' although its Constitution is federal in structure.
- According to Dr. B.R Ambedkar, the phrase 'Union of States' has been preferred to 'Federation of States' for two reasons:
- The Indian Federation is not the result of an agreement among the states like the American Federation. Hence, statement 1 is not correct.
- The states have no right to secede from the federation. Hence, statement 2 is correct.
- The federation is a Union because it is indestructible. The country is an integral whole and divided into different states only for the convenience of administration.

Q2. Ans.D

Solution:

- The Government of India in December 1953, appointed a three-member States Reorganisation Commission under the chairmanship of Fazl Ali to re-examine the whole question. Its other two members were K M Panikkar and H N Kunzru. Its report submitted in September 1955, broadly accepted language as the basis of reorganization of states, but rejected the concept of 'one language-one state'.

Q3. Ans.D

Solution:

Features of Fundamental Rights

- Some of them are available only to the citizens while others are available to all persons whether citizens, foreigners or legal persons like corporations or companies.
- The Constitution confers the following rights and privileges on the citizens of India (and denies the same to aliens):
- Right against discrimination on grounds of religion, race, caste, sex or place of birth (Article 15). Right to equality of opportunity in the matter of public employment (Article 16).
- Right to freedom of speech and expression, assembly, association, movement, residence and profession (Article 19). Cultural and educational rights (Articles 29 and 30).

Q4. Ans.C

Solution:

- As per Citizenship Act, 1955, the power to grant citizenship lies with Home Ministry in India.

Q5. Ans.D

Solution:

- The literal meaning of 'Prohibition' is 'To forbi(d)' A court which is higher in position issues Prohibition writ against a court which is lower in position to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction that it does not possess. It directs inactivity.
- Facts about Prohibition in India:
 - ⊙ Writ of Prohibition can only be issued against judicial and quasi-judicial authorities. It can't be issued against administrative authorities, legislative bodies, and private individuals or bodies.

Q6. Ans.C

Solution:

- The Government of India Act, 1919 provided for a high commissioner, who resided in London and represented India in Great Britain.

Q7. Ans.B

Solution:

- During national emergency, all the basic freedoms guaranteed by article 19 automatically get suspended. During emergency, President can suspend all other fundamental rights also except Article 20 (protection in respect of conviction for offences) and Article 21 (Protection of life and personal liberty). Such suspension needs parliamentary approval.

Q8. Ans.A

Solution:

- The Preamble of the Constitution like the preamble of any statute furnishes the key to open the mind of the makers of the Constitution more so because the Constituent Assembly took great pains in formulating it so that it may reflect the essential features and basic objectives of the Constitution.
- The Preamble does not grant any power but it gives direction and purpose to the Constitution. It outlines the objective of the whole Constitution. The Preamble contains the fundamentals of constitution. It serves several important purposes like:-
- It contains the enacting clause which brings the Constitution into force. It declares the basic type of government and polity which is sought to be established in the country. It declares the great rights and freedom which the people of India intended to secure to its entire citizen.

Q9. Ans.D

Solution:

- These are the opening words of the preamble of the Indian Constitution "WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens:
- JUSTICE, social, economic and political;
- LIBERTY of thought, expression, belief, faith and worship; EQUALITY of status and of opportunity; and to promote among them all
- FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation; IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

Q10. Ans.B**Solution:**

- The Western concept of secularism connotes a complete separation between the religion (the church) and the state (the politics). This negative concept of secularism is inapplicable in the Indian situation where the society is multi-religious. Hence, the Indian Constitution embodies the positive concept of secularism, i.e., giving equal respect to all religions or protecting all religions equally.

Q11. Ans.D**Solution:**

- The most important committee of the Constituent Assembly was the Drafting Committee set up on August 29, 1947. It was entrusted with the task of preparation of the draft of the constitution. Dr. B. R. Ambedkar was the Chairman of the Committee.

Q12. Ans.C**Solution:****Article 3 authorizes the Parliament to:**

- form a new state by separation of territory from any state or by uniting two or more states or parts of states or by uniting any territory to a part of any state;
- increase the area of any state;
- diminish the area of any state;
- alter the boundaries of any state; and
- alter the name of any state.
- However, Article 3 lays down two conditions in this regard: one, a bill contemplating the above changes can be introduced in the Parliament only with the prior recommendation of the President; and two, before recommending the bill, the President has to refer the same to the state legislature concerned for expressing its views within a specified period.

Q13. Ans.B**Solution:**

- Indian Councils Act, 1861, made a beginning of representative institutions by associating Indians with the law-making process. It thus provided that the viceroy should nominate some Indians as non-official members of his expanded council.
- In 1862, Lord Canning, the then viceroy, nominated three Indians to his legislative council—the Raja of Benaras, the Maharaja of Patiala and Sir Dinkar Rao.

Q14. Ans.A**Solution:**

- Fundamental rights, protect citizens against the arbitrary and absolute exercise of power by the State. The Constitution of India guarantees the rights of the individual against the State as well as against other individuals.

Q15. Ans.B**Solution:****Amending Act of 1781:-**

- In a bid to rectify the defects of the Regulating Act of 1773, the British Parliament passed the Amending Act of 1781, also known as the Act of Settlement. It exempted the Governor-General and the Council from the jurisdiction of the Supreme Court for the acts done by them in their official capacity. Similarly, it also exempted the servants of the company from the jurisdiction of the Supreme Court for their official actions. It excluded the revenue matters and the matters arising in the collection of revenue from the jurisdiction of the Supreme Court.

Q16. Ans.C**Solution:**

- The National Anthem of India (Jana-Gana-Mana) was originally composed by Rabindranath Tagore in Bengali. It was first sung at Calcutta during the session of the Indian National Congress in December 1911. Statement (2) is correct:
- ⊙ It was adopted by the Constituent Assembly as the National Anthem of India on 24 January 1950. A formal

rendition of the National Anthem takes fifty-two seconds. A shortened version consisting of the first and last lines (and taking about 20 seconds to play) is also staged occasionally.

Q17. Ans.D

Solution:

- Mandamus means 'we command'. It is a command issued by the court to a public official asking him to perform the official duties that he has failed or refused to perform. It can also be issued against any public body, a corporation, an inferior court, a tribunal or government for the same purpose. The writ of mandamus cannot be issued a against a private individual or body; b to enforce departmental instruction that does not possess statutory force; c when the duty is discretionary and not mandatory; d to enforce a contractual obligation; (e) against the President of India or the state Governors; and (f) against the Chief Justice of a High Court acting in judicial capacity. Hence, option d is the correct answer.

Q18. Ans.C

Solution:

- **Statement 1 is correct:** Distributive justice is concerned with the measurements that should be used to allocate the resources of the society.
- ⊙ It also decides fair distribution of the burdens and benefits of social cooperation among persons with various needs and claims.
- ⊙ The term 'justice' in the Preamble embraces three distinct forms—social, economic and political, secured through various provisions of Fundamental Rights and Directive Principles. A combination of social justice and economic justice denotes what is known as 'distributive justice'.
- **Statement 2 is correct:** The concept of Justice - social, economic, and political has been taken from the Russian Revolution. The Russian Revolution was a period of political and social revolution across the territory of the Russian Empire, commencing with the abolition of the monarchy in 1917. It was led by Vladimir Lenin.

- **Statement 3 is correct:** Justice means that each individual be treated fairly, and given the same opportunities. Justice refers to the fact that all Indian citizens should receive social, economic, and political justice.

- ⊙ Since the dawn of human civilization, the concept of justice has been central. These are secured through various provisions of Fundamental Rights and Directive Principles. The Fundamental Rights ensure political justice and DPSP ensures economic and social justice.

Q19. Ans.D

Solution:

- Article 22 grants protection to persons who are arrested or detainee(d) Punitive detention is a punishment for illegal acts done. Preventive detention is imprisonment of a person beforehand to prevent the possible commitment of a crime. Preventive detention thus is action taken on grounds of suspicion that some wrong actions may be done by the person concerned(d)
- The first part of Article 22 confers the following rights on a person who is arrested or detained under an ordinary law: 1. Right to be informed of the grounds of arrest. 2. Right to consult and be defended by a legal practitioner. 3. Right to be produced before a magistrate within 24 hours, excluding the journey time. 4. Right to be released after 24 hours unless the magistrate authorises further detention.
- Article 22 (5) says when any person is detained in pursuance of an order made under any law providing for preventive detention, the authority making the order shall, as soon as may be, communicate to such person the grounds on which the order has been made and shall afford him the earliest opportunity of making a representation against the order.

Q20. Ans.D

Solution:

- Article 20 {Protection in respect of conviction for offences}: No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, not be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence.

- No person shall be prosecuted and punished for the same offence more than once. No person accused of any offence shall be compelled to be a witness against himself. Article 21 {Protection of life and personal liberty}: No person shall be deprived of his life or personal liberty except according to procedure established by law.

Q21. Ans.C

Solution:

- **Statement 1 is correct.** The Act elevated Governor of Bengal, Warren Hastings to Governor-General of Bengal and subsumed the presidencies of Madras and Bombay under Bengal's control..
- **Statement 2 is correct.** Annual elections of 24 directors were replaced by the election of six judges a year, each for a four-year term, and the qualification for a vote was raised from £500 to £1,000. This change made it more difficult for private groups to control policy and places by manipulating votes.
- **Statement 3 is incorrect.** The act rendered the Governor-General without any veto power.
- **Statement 4 is correct.** The act raised the qualification for a vote from £500 to £1,000.

More information about 1773 Act:

- **REGULATION:** The British government to control and regulate affairs of the East India Company.
- **RECOGNISATION:** Recognize the political and administrative functions (A&D) of the company.
- **RENAMING:** Governor of Bengal to Governor General of Bengal.
- **RESTRUCTURING:**
 - ⊗ **Executive council:** to assist the governor.
 - ⊗ **Status of Presidency:** Bombay and Madras presidency subordinate to the Governor General of Bengal.
 - ⊗ **Institution:** Establishment of the Supreme Court at Fort William

Q22. Ans.B

Solution:

- **Statement-I is correct.** The Charter Act of 1813 did give Christian missionaries permission to enter India and preach their religion.
- **Statement-II is also correct,** as the Act appointed a Bishop to lead the Church, supported by Indian tax money.
- **Therefore, the correct answer is (b),** Both Statement-I and Statement-II are correct, and Statement-II is the not correct explanation for Statement-I. They are factually correct statements

More information:

- **Background:** Napoleonic wars and the miseries it caused prompted the traders to pressurize the government to end the monopoly in trade that EIC enjoyed
- **Features of the act**
 - ⊗ **COMPANY'S RULE:** extended for another 20 years.
 - ⊗ **LICENSING SYSTEM:** British merchants were allowed to trade in India under a strict licensing system under the Charter Act of 1813.
 - ⊗ **COMPANY MONOPOLY:** Trade with China and the tea and opium trade.
 - ⊗ **FINANCIAL GRANT:** It provided for a financial grant towards the revival of Indian literature and the promotion of science.
 - ⊗ **EDUCATIONAL GRANT:** The company was asked to take up a greater role in the education of the Indians under them. It was to set aside Rs.1 Lakh for this purpose.
 - ⊗ **Abolished the trade monopoly of the company in India:** Except trade in tea and trade with China.
 - ⊗ **Western Education:** Allowed the Christian missionaries for the spread of western education.

Q23. Ans.D

Solution:

- **Option (d) is correct** because Half of the council members should have 10 years of experience in public service in India.
- **Therefore, the correct answer is (d).** Statement d is correct.

More information

- **Indian in Executive Council:** The act mandated that the three of the six members of the Viceroy's executive council were to be Indian
- **Principle of separate electorates:** extended to Sikhs, Indian Christians, Anglo-Indians and Europeans
- **Limited franchise:** people on the basis of property, tax or education
- **High commissioner of India:** position created. Some powers of Secretary of State was transferred to the commissioner
- **Provincial budgets were separated:** for the first time from the central budget.
- **Central public service commission:** was established
- **Statutory commission:** to analyse the impact of this act after 10 years- Simon Commission

Q24. Ans.D

Solution:

- Statement-I is incorrect. The Indian Independence Act of 1947 did not establish the Constituent Assembly. The Constituent Assembly was formed before India gained independence, according to the Cabinet Mission Plan.
- Statement-II is correct. The Constituent Assembly of India was responsible for drafting the Indian Constitution.
- **Therefore, the correct answer is (d)** Statement-I is incorrect, but Statement-II is correct.

More information:

- **Constituent Assembly:** in November 1946 under Cabinet Mission Plan.
- **Seat allocation:** as per population proportion.

- **Voting:** by method of proportional representation by means of single transferable vote in case of provincial representation.
- **Nature of assembly:**
 - ⊙ **Partly nominated:** by heads of Princely states
 - ⊙ **Partly elected body:** In British Provinces
- **Method of election:** Indirectly elected
- **Mahatma Gandhi:** not part of C.A.
- **Distribution of seats:** The 93 seats allotted to the princely states were not filled as they decided to stay away from the Constituent Assembly.

Q25. Ans.C

Solution:

- **Statement (a)** The Doctrine of Separation of Powers refers to the distribution of powers among the three branches of government. It is incorrect
- **Statement (b)** The Doctrine of Judicial Review allows the courts to review the constitutionality of laws. It is incorrect
- **Statement (c)** Doctrine of Severability. This doctrine enables the court to separate the unconstitutional part of a law while preserving the valid portions. It is correct
- **Statement (d)** The Doctrine of Stare Decisis relates to the principle of precedent. It is not directly related to severability. It is incorrect
- **Therefore, the correct answer is (c).**

Q26. Ans.A

Solution:

- **Statement (a) is correct** because equality before law is based on the premise that every individual has a different set of circumstances, and that they have to be treated equitably.
- **Statement (b) is incorrect**, as equality before law does not mean that every person will have the exact same legal rights. Rather, it implies that law will treat every person according to her/his respective situations, and it might lead to different rights too.
- **Statement (c) is incorrect** because it goes against the principle of equality before law.

- **Statement (d) is incorrect** as the judiciary interprets laws but does not create them.
- **Therefore, the correct answer is (a)** Statement b is correct.

More information:

- **Equality before law:**
 - ⊙ **Special privileges:** absent of any special privileges in favour of any person
 - ⊙ **Equal subjection:** of all persons to the ordinary law of land
 - ⊙ **No-about the law:** nobody is above the law

Q27. Ans.B

Solution:

- **Statement 1 Incorrect.** Sovereign means that India is not under the control or dominion of any foreign power.
- **Statement 2 Correct.** The Constitution advocates socialism by means of part of state ownership or control of key industries.
- **Statement 3 Incorrect.** Secular means the state has no religion, not promoting atheism.
- **Statement 4 Correct.** India follows a democratic system with universal adult franchise.
- **Therefore, the correct answer is (b).**

Q28. Ans.A

Solution:

- **Statement 1** The Right to Education is a fundamental right for children in the age group of 6 to 14 years under Article 21A. So, **Statement 1 is incorrect.**
- **Statement 2** Private schools are mandated to admit a certain percentage of students from disadvantaged groups without charging any fee, but they are not required to provide free education to all. So, **Statement 2 is incorrect.**
- **Statement 3** The State does have the authority to regulate the fees charged by private unaided schools as per the Right to Education Act. The State has the authority to regulate the fees charged by private unaided schools by forming a District Fee Regulatory Committee. So, **Statement 3 is correct.**

- **Therefore, the correct answer is (a).** Statements 1 and 2 are incorrect.

More information:

- **About Art. 21 A:** It declares that the State shall provide free and compulsory education to all children of the age of six to fourteen years in such a manner as the State may determine.
- **Elementary education as fundamental right:** and not higher or professional education.
- **Added by:** 86th Constitutional Amendment Act of 2002.

86th CAA 2002

- **'Education for All':** major milestone in the country's aim to achieve 'Education for All'.
- **Second revolution for citizen rights:** The government described this step as 'the dawn of the second revolution in the chapter of citizens' rights.
- **Earlier position:** Prior this amendment, the DPSP (Art. 45 in Part IV) contained a provision for free and compulsory education for children.
- **Limitation of being DPSP:** Being a directive principle, it was not enforceable by the courts.
- Now, there is scope for judicial intervention in this regard.
- **Amendments:** changed the subject matter of Art. 45 in directive principles.
- **Present position:** It now reads– 'The state shall endeavour to provide early childhood care and education for all children until they complete the age of six years.'

Right of Children to Free and Compulsory Education (RTE) Act, 2009:

- In pursuance of Art. 21A, the Parliament enacted the Right of Children to Free and Compulsory Education (RTE) Act, 2009.
- **Provisions:**
 - ⊙ **Education as fundamental right:** Every child has a right to be provided full time elementary education of satisfactory and equitable quality in a formal school which satisfies certain essential norms and standards.

- ⊙ **Objective:** This legislation is anchored in the belief that the values of equality, social justice and democracy and the creation of a just and humane society can be achieved only through provision of inclusive elementary education to all.

Q29. Ans.D

Solution:

- ⊙ In this scenario, the government is empowered to impose restrictions on the exercise of the Fundamental Right to Freedom of Religion by invoking Article 25(1), which allows for such restrictions in the interest of public order, morality, and health.
- ⊙ **Therefore, the correct answer is (d).**

Q30. Ans.D

Solution:

- ⊙ **Statement (d) is correct.** Reservations are not based on caste. They are provided for socially and educationally backward classes, and also based on economically weaker sections. Statement-II provides the correct explanation.
- ⊙ **Therefore, the correct answer is (d).**

There are four exceptions to this general rule of non-discrimination:

- ⊙ **Article 15(3):** The state is permitted to make any special provision for women and children.
 - ⊙ **For example:** reservation of seats for women in local bodies or provision of free education for children.
- ⊙ **Article 15(4):** The state is permitted to make any special provision for the advancement of any socially and educationally backward classes of citizens or scs & sts.
 - ⊙ **For example:** reservation of seats or fee concessions in public educational institutions.
- ⊙ **Article 15(5):** The state is empowered to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scs & sts regarding their admission to educational institutions except the minority educational institutions.
- ⊙ **Article 15(6):** The state is empowered to make any special provision for advancement of any Economically Weaker Sections of society. (103rd CAA)

Q31. Ans.B

Solution:

- ⊙ **Statement (b) is correct.** Both Statement-I and Statement-II are correct. Minority communities do have the right to establish and administer educational institutions, and these rights can be restricted by the state for ensuring the quality of education.
- ⊙ **Therefore, the correct answer is (b).**
- ⊙ **About Art. 29:** it provides that any section of the citizens residing in any part of India having a distinct language, script or culture of its own, shall have the right to conserve the same.
- ⊙ **No citizen shall be denied:** admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, or language.

Provisions:

- ⊙ **Art. 29(1):** protects the right of a group
- ⊙ **Art. 29(2):** guarantees the right of a citizen as an individual irrespective of the community to which he belongs.
- ⊙ **Article 29 grants protection to:**
 - ⊙ Religious minorities
 - ⊙ Linguistic minorities
- ⊙ **About Art. 30:** it grants the following rights to minorities (religious or linguistic):
 - ⊙ **Right to establish:** All minorities shall have the right to establish and administer educational institutions of their choice.
 - ⊙ **The compensation amount fixed by the State:** for the compulsory acquisition of any property of a minority educational institution shall not restrict or abrogate the right guaranteed to them (added by the 44th Amendment Act of 1978)
 - ⊙ **No discrimination:** In granting aid, the State shall not discriminate against any educational institution managed by a minority.
- ⊙ **Term 'minority':** has not been defined anywhere in the Constitution.
- ⊙ **Protects Only to Minorities:** Protection under Art. 30 is confined only to minorities

⊙ Religious

⊙ Linguistic

- **Does not extend to:** any section of citizens (as under Art. 29).
- **The right to impart education in its own language:** The right under Art. 30 also includes the right of a minority to impart education to its children in its own language

Q32. Ans.B

Solution:

- **Statement 1 is correct** as the NRC in Assam indeed aims to identify foreign nationals.
- **Statement 2 is incorrect** as the NRC exercise may be extended to other states in the future.
- **Statement 3 is correct** as Nagaland is creating a similar database called the Register of Indigenous Inhabitants.
- **Therefore, the correct answer is (b).** Statements 1 and 3 are correct.

More information:

National Register of Citizens (NRC)

- **What is NRC:** The National Register of Citizens (NRC) is a register of all Indian citizens whose creation is mandated by the 2003 amendment of the Citizenship Act, 1955.
- **Ministry of Home Affairs (MHA):** This NRC was prepared under a directive from the Ministry of Home Affairs (MHA).
- **Assam:** At present, only Assam has such a register and the exercise may be extended to other states as well.
- **Nagaland:** is already creating a similar database known as the Register of Indigenous Inhabitants. **NRC in Assam**
- **The NRC in Assam:** is basically a list of Indian citizens living in the state. The citizens' register sets out to identify foreign nationals in the state that borders Bangladesh.
- **The reason behind the move:** was to identify Indian citizens in Assam amid "unabated" migration from East Pakistan (now Bangladesh).

Q33. Ans.C

Solution:

- **Statement 1 is correct;** Indian citizenship by birth requires both parents to be Indian citizens.
- **Statement 2 is correct** as one of the conditions for citizenship by naturalization is to be well-versed in a language mentioned in the Eighth Schedule.
- **Statement 3 is correct** as the Citizenship Amendment Act, 2003, introduced these changes for those born after 2004 or one to be an not illegal migrant for those born after 2004.

More information:

➤ By Naturalisation:

- ⊙ **Residing:** in the country concerned for a certain period of time.
- ⊙ **Do not be a citizen of any country:** where Indians do not get citizenship by naturalization.
- ⊙ **Relinquishing the citizenship:** of other countries and accepting the citizenship of India.
- ⊙ **Eighth Schedule:** Should be well versed in any one of the languages mentioned in the Eighth Schedule.

➤ Be of good character.

- **Special work:** a person who has done special work in the field of science, philosophy, art, literature, world peace, or human development,

- ⊙ He can get citizenship by naturalization without fulfilling the above conditions.

- **The Citizenship Amendment Act, 2003:** It made Citizenship by birth more stringent keeping in view infiltration from Bangladesh, Now the law requires that for those

- **Born after 2004:** in addition to the fact of their own birth, both parents should be Indian citizens or one parent must be Indian citizen and other should not be an illegal migrant.

- **Therefore, the correct answer is (c).** Statements 1, 2 and 3 are correct.

Q34. Ans.C

Solution:

- **Article 21** of the Indian Constitution deals with the protection of life and personal liberty. In the *KS Puttaswamy Case (2017)*, the Supreme Court held that **privacy is a natural right** that inheres in all natural persons, and that the right may be restricted only by state action that passes each of the three tests:
- Ⓐ Such state action must have a legislative mandate.
- Ⓑ It must be pursuing a legitimate state purpose; and
- Ⓒ It must be proportionate.

Q35. Ans.B

Solution:

- **Statement 1 is incorrect.** The act did not allow Indian representation in the Legislative Council.
- **Statement 2 is correct.** The act led to the creation of separate provinces for Sind and Punjab.
- **Statement 3 is correct.** The act reduced the number of members on the Board of Directors from 24 to 18.
- **Statement 4 is incorrect.** The act required the assent of the Governor-General for all legislative proposals.
- **Therefore, the correct answer is (b) Only three.** Statement 2,3 are correct

Q36. Ans.B

Solution:

- **Statement (a) is incorrect** as the rule of law restrains government power.
- **Statement (b) is correct** as it correctly defines the rule of law.
- **Statement (c) is incorrect** because the executive branch doesn't have sole authority for law interpretation.
- **Statement (d) is incorrect** because suspending laws contradicts the rule of law.
- **Therefore, the correct answer is (b)** Statement b is correct.

Q37. Ans.B

Solution:

- **Statement 1 Incorrect.** Unity does not necessarily involve the promotion of regional languages.
- **Statement 2 Correct.** Sovereign means freedom from external control.
- **Statement 3 Incorrect.** Fraternity (brotherhood) promote unity among citizens, not the assimilation of all cultures.
- **Statement 4 Correct.** Justice includes equality before the law.
- Therefore, the correct answer is (b)

Q38. Ans.D

Solution:

- Statement a is incorrect. Fundamental Rights are not subordinate to DPSP; both have their significance, but Fundamental Rights have precedence.
- Statement b is incorrect. Fundamental Rights and DPSP are not mutually exclusive; they coexist in the Indian Constitution.
- Statement c is incorrect. Fundamental Rights and DPSP are not equal in status; Fundamental Rights hold a superior position.
- Statement d is correct. Fundamental Rights take precedence over DPSP, meaning if there is a conflict, Fundamental Rights are given priority.
- **Therefore, the correct answer is (d).** Statements 1,2 and 3 are incorrect.

Q39. Ans.C

Solution:

- Statement a is incorrect. Restrictions on Fundamental Rights can be imposed by both the Legislature and the Executive, provided they are reasonable.
- Statement b is incorrect. While the judiciary plays a role in safeguarding Fundamental Rights, restrictions can also be imposed by the Legislature and Executive.
- Statement c is correct. Restrictions on Fundamental Rights must be prescribed by law and must be reasonable, as outlined in the Constitution.

- Statement d is incorrect. Fundamental Rights can be restricted under specific circumstances, as long as such restrictions meet the constitutional criteria.
- **Therefore, the correct answer is (c).**

Q40. Ans.A

Solution:

- **Statement 1 is correct.** Freedom of speech and expression includes the freedom to criticize the government.
- **Statement 2 is incorrect.** Freedom of speech and expression does not include promoting hate speech or insensitivity expression
- **Statement 3 is incorrect.** Restrictions on freedom of speech and expression can be imposed by both the Central and State Governments.
- **Therefore, the correct answer is (a).** Statements 2 and 3 are incorrect.

More information:

- **About Art.19(a):** Every citizen has the right to express his views, opinions, belief and convictions freely by word of mouth, writing, printing, picturing or in any other manner.
- **Art. 19(a) includes:** The SC held that the freedom of speech and expression includes the following:
 - ⊙ Right to propagate one's views as well as views of others.
 - ⊙ Freedom of the press.
 - ⊙ Freedom of commercial advertisements.
 - ⊙ Right against tapping of telephonic conversation.
 - ⊙ Right to telecast, government has no monopoly on electronic media.
 - ⊙ Right against bundh called by a political party or organization.
 - ⊙ Right to know about government activities.
 - ⊙ Freedom of silence.
 - ⊙ Right against imposition of pre-censorship on a newspaper.
 - ⊙ Right to demonstration or picketing but not right to strike.

- **Grounds for reasonable restrictions:** 8 grounds
 - ⊙ Sovereignty and integrity of India
 - ⊙ Security of the state
 - ⊙ Friendly relations with foreign states
 - ⊙ Public order
 - ⊙ Decency or morality
 - ⊙ Contempt of court
 - ⊙ Defamation
 - ⊙ Incitement to an offence

Q41. Ans.B

Solution:

- **Statement (b) is correct.** Habeas Corpus is the writ used to ensure that a person is not subjected to torture or inhuman treatment while in custody.
- **Therefore, the correct answer is (b).**

More information

HABEAS CORPUS

- **Meaning:** Habeas corpus means "to have the body of".
- **Implication:** It is an order issued by the court to a person who has detained another person to produce the body of the latter before it.
 - ⊙ The court then examines the cause and legality of detention.
 - ⊙ It would set the detained person free, if the detention is found to be illegal.
- **Importance:** Habeas corpus writ is a bulwark of individual liberty against arbitrary detention.
- **Can be issued:** against both public authorities as well as private individuals.
- **Exceptions:** The writ of habeas corpus cannot be issued in following cases where
 - ⊙ Detention is lawful,
 - ⊙ The proceeding is for contempt of a legislature or a court,
 - ⊙ Detention is by a competent court,
 - ⊙ Detention is outside the jurisdiction of the court.

Q42. Ans.C

Solution:

- Distribution of power between the Centre and the States in the Indian Constitution is based on the Government of India Act, 1935.
- The Government of India (GoI) Act of 1935 provided for a three-fold enumeration, viz., federal, provincial and concurrent.
- The present Constitution follows the scheme of this act for the distribution of powers between the Centre and States but with one difference, that is, under 1935 act, the residuary powers were given neither to the federal legislature nor to the provincial legislature but to the governor-general of India.

Q43. Ans.D

Solution:

- The Provisional President of the Constituent Assembly before Dr. Rajendra Prasad took over was **(d) Dr. Sachchidananda Sinha**. He was elected as the temporary President during the first meeting on December 9, 1946, following the French practice of appointing the oldest member. Dr. Rajendra Prasad was elected as the permanent President on December 11, 1946.

Q44. Ans.A

Solution:

- Democracy is a form of government in which the rulers are elected by the people. Features of the Democracy are
- **Statement 1 is correct:** In a democracy the final decision making power must rest with those elected by the people.
- **Statement 2 is correct:** A democracy must be based on a free and fair election where those currently in power have a fair chance of losing.
- **Statement 3 is correct:** In a democracy, this principle is known as "Universal Adult Suffrage" and "One Person, One Vote, One Value." It ensures that every adult citizen has an equal right to vote, and no vote carries more weight than another.
- **Statement 4 is incorrect:** Parliamentary sovereignty is not a universal feature of

democracy. In some countries like the UK, Parliament is supreme, and courts cannot overrule its laws. In others like the

- USA, judicial sovereignty dominates, where the Supreme Court can strike down unconstitutional laws.
- India follows a balanced model, where both Parliament and the judiciary have significant powers.

Q45. Ans.A

Solution:

- Article 395 of the Indian Constitution rendered certain colonial-era laws invalid to eliminate the old legal framework upon the enforcement of the new Constitution:
- ⊙ **Government of India Act, 1935:** This law was the basis for governance during British rule but was replaced entirely by the provisions of the Indian Constitution.
- ⊙ **Indian Independence Act, 1947:** This law, which granted India independence and established the dominion structure, became irrelevant once the new Constitution came into effect.

Other Acts:

- The **Abolition of Privy Council Jurisdiction Act, 1949**, continued to exist, as it was not affected by Article 395. It served to end appeals to the Privy Council and affirm the Supreme Court's authority.
- The **Government of India Act, 1919**, was already replaced by the Government of India Act, 1935, and therefore wasn't directly repealed by Article 395.
- Thus, only the 1935 and 1947 Acts were annulled under Article 395.

Q46. Ans.B

Solution:

- **Statement 1 is correct:** The Constituent Assembly was composed of representatives from various communities, including Hindus, Muslims, Sikhs, Parsis, Anglo-Indians, Indian Christians, Scheduled Castes, Scheduled Tribes, and women. This diverse representation made the Constitution broadly acceptable, even though the Assembly was not elected by universal adult suffrage.
- **Statement 2 is correct:** The Constitution received widespread acceptance due to the endorsement and support of respected leaders who were trusted by the public. Their credibility and ability to build consensus ensured its legitimacy.
- **Statement 3 is incorrect:** This statement is correct but it is not the reason for widespread acceptance of the Indian Constitution. The Constituent Assembly was predominantly influenced by the Congress Party, which held 82% of the seats post-Partition. This dominance allowed for a unified vision in framing the Constitution, though it also drew criticism for a lack of political plurality. Despite this, the Assembly's inclusive representation balanced the critique.
- **Statement 4 is incorrect:** The Constitution was not put to a public referendum. Its legitimacy stemmed from the trust placed in the Assembly and its respected members rather than a direct vote by the people.

Q47. Ans.B

Solution:

- **Statement 1 is correct:** India is described as a republic because the ultimate authority rests with the people, who elect their representatives. Sovereignty belongs to the people, and the government operates on their consent, making India a democratic republic.
- **Statement 2 is incorrect:** While India is a member of the Commonwealth, the British Crown is not its head. After independence, India became a republic and is no longer under the British monarchy. India has a President as the head of state, not the British Crown.
- **Statement 3 is correct:** In a republic, the head of state is elected, either directly or indirectly.

In India, the President is elected through an electoral process, which makes the country a republic, as opposed to monarchies where the head of state is hereditary.

- **Statement 4 is incorrect:** Indian Constitution provides for a single citizenship (Indian citizenship for all citizens, regardless of the state they belong to), this is not a characteristic that defines India as a republic. The concept of a republic is more closely related to the elected head of state and sovereignty vested in the people, rather than the issue of citizenship.

Q48. Ans.A

Solution:

- **Statement 1 is correct:** The core objective of Separation of Powers is to prevent misuse of power by creating a system of checks and balances. Each branch of government—Legislature, Executive, and Judiciary—keeps the others in check.
- **Statement 2 is correct:** Separation of Powers helps promote accountability. Each branch of government is given specific powers and responsibilities within the Constitution. By ensuring each branch operates within its limits, it reduces the risk of one branch overstepping its boundaries or becoming too powerful.
- **Statement 3 is correct:** An essential aspect of the doctrine is ensuring the independence of the Judiciary. The judiciary must be free from undue influence by the executive or legislative branches. This independence allows the judiciary to interpret the law impartially, protect fundamental rights, and uphold the rule of law without interference from the other branches.
- **Statement 4 is incorrect:** The judiciary's role in providing "complete justice" under Article 142 is not a direct result of the Separation of Powers. In fact, such actions sometimes lead to judicial overreach, contradicting the principle.

Q49. Ans.A

Solution:

- **Statement 1 is correct.** The creation or alteration of Union Territories is done through legislation passed by the Parliament of India. Parliament has the authority to establish, abolish, or alter Union Territories by enacting laws.
- **Statement 2 is incorrect.** The establishment of Union Territories usually requires legislative action by the Parliament. The President, in the normal course, doesn't have the unilateral power to create a Union Territory through an executive order without legislative approval.
- **Statement 3 is incorrect.** The formation of a Union Territory does not always necessitate the consent of the concerned state government.
- ⊙ The creation or alteration of Union Territories is primarily within the purview of the Parliament, and while state governments might be consulted or their interests considered, their explicit consent isn't mandatory.

Q50. Ans.B

Solution:

- **Statement 1 is incorrect:** Article 368 provides that Parliament may in exercise of its constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article. All amendments to the Constitution are initiated only in the Parliament and not in the State legislatures.
- **Statement 2 is correct:** The Constitutional amendment bill can be introduced either by a minister or by a private member and does not require prior permission of the President.
- **Statement 3 is correct:** The President must give his assent to the bill. He can neither withhold his assent to the bill nor return the bill for reconsideration by the Parliament.